

Smt Shilpa W/O Dr Sachinkumar Kanagali vs Dr Sachinkumar Basavaraj Kanagali on 13 February, 2023

Author: M.G.S. Kamal

Bench: M.G.S. Kamal

- 1 -

CP No. 100018 of 2023

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 13TH DAY OF FEBRUARY, 2023

BEFORE

THE HON'BLE MR JUSTICE M.G.S. KAMAL

CIVIL PETITION NO. 100018 OF 2023

BETWEEN:

SMT. SHILPA W/O. DR. SACHINKUMAR KANAGALI
AGE: 37 YEARS, OCC: NIL,
R/O. # 1 KOTHARI LAYOUT,
KUSUGAL ROAD, SHABARI NAGAR,
HUBBALLI - 580023.

...PETITIONER

(BY SRI. CHETAN T.LIMBIKAI, ADVOCATE)

AND:

DR. SACHINKUMAR BASAVARAJ KANAGALI
AGE: 48 YEARS, OCC: DOCTOR,
R/O. APARTMENT NO.50,

Digitally
signed by

VALLEY PARK SOUTH, LANDINGS BETHLEHEM,

ROHAN

ROHAN
HADIMANI

PA, 18018

HADIMANI T

T

Date:

2023.03.01

13:16:36 -

0800

UNITED STATES OF AMERICA.

...RESPONDENT

(BY SMT. RAJESHWARI S.HEREKAR AND
SMT. S.V.DESHPANDE, ADVOCATES)

THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF CPC, 1908, PRAYING TO PASS AN ORDER OF TRANSFERRING THE MC NO. 45/2022, PENDING ON THE FILE OF HON'BLE 1ST ADDITIONAL FAMILY COURT, AT HUBBALLI TO HON'BLE PRINCIPAL JUDGE, FAMILY COURT, HUBBALLI IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

- 2 -

CP No. 100018 of 2023

ORDER

Present petition is filed by the petitioner/wife seeking an order to transfer M.C.No.45/2022 filed under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 by the respondent/husband pending consideration on the file of the I Additional Family Court, Hubballi to the Principal Judge, Family Court, Hubballi where M.C.No.228/2020 filed by the petitioner/wife under Section 9 of the Hindu Marriage Act (for short, 'the Act') is pending consideration. BRIEF FACTS OF THE CASE:-

2. The marriage between the petitioner/wife and the respondent/husband was solemnized on 18.02.2018 at Vitubhai Kalyan Manthap, Hubballi as per the Hindu rites and customs. That during December, 2008 to the shock and surprise of the petitioner/wife, the respondent/husband through video call had informed her that he is not interested in the marriage. Despite best efforts by the petitioner/wife to convince, the respondent/husband did not responded constraining her to file a petition under Section 9 of the Act in M.C.No.228/2020 before the Principal Judge, Family Court, Hubballi seeking for restitution of conjugal rights. Thereafter, the respondent/husband has filed M.C.No.45/2022 before the I Additional Family Court, Hubballi seeking dissolution of marriage.

3. Apprehending conflicting decision in the aforesaid matters being pending in different Courts, petitioner/wife is before this court.

4. Smt. Rajeshwari S.Herekar along with Smt. S.V.Deshpande, learned counsel appearing for the respondent/husband on the contrary submits that the matter pending before the I Additional Family Court, Hubballi in M.C.No.45/2022 filed by the husband is at the stage of cross-examination of the petitioner/wife while the stage of the proceedings in M.C.No.228/2020 filed by the petitioner/wife is also at the stage of cross-examination of the petitioner/wife. Besides, she also submits that the pendency of the matters before the I Additional Family Court is lesser compared to

the pendency of the matters before the Principal Judge, Family Court, Hubballi. Therefore, she submits that instead of transferring of M.C.No.45/2022 from the I Additional, Family Court, Hubballi to the Principal Judge, Family Court, Hubballi, that the matter in M.C.No.228/2020 pending before the Principal Judge, Family court, Hubballi may be withdrawn and transferred to the I Additional, Family Court, Hubballi.

5. In response thereof, Sri. Chetan T.Limbikai, the learned counsel appearing for the petitioner/wife submits that petition in M.C.No.45/2022 filed by the respondent/husband is an after thought only to counter the petition filed by the petitioner/wife. Therefore he urged, in all fairness, it would be appropriate to have M.C.No.45/2022 be transferred to the Principal Judge, Family Court, Hubballi.

6. Heard. Perused the records.

7. Petition is one under Section 24 of the Civil Procedure Code for the reliefs sought as noted hereinabove.

The marriage between the petitioner and respondent is not in dispute. The jurisdiction before which the petitions are having been filed is also not in dispute. Since both the matters are pending consideration within the jurisdiction where the wedding was conducted and where the petitioner/wife is residing, the only question that requires to be considered is whether the M.C.No.45/2022 pending on the file of the I Additional Family Court, Hubballi be withdrawn and placed before the Principal Judge, Family Court, Hubballi or the matter pending before the Principal Judge, Family Court, Hubballi be withdrawn and placed before the I Additional, Family Court, Hubballi.

8. Since the only apprehension expressed by the petitioner/wife is that adjudication of the matters by different Courts may lead to conflicting and contradictory judgments and in that view of the matter, both the petitions be heard together, this Court is of the considered view that this petition be disposed of with following directions;

i. The Principal Judge, Family Court, Hubballi shall pass appropriate orders either transferring M.C.No.228/2020 pending on its filed to the Court of the I Additional Family Judge, Hubballi, to be adjudicated along with M.C.No.45/2022 or withdraw M.C.No.45/2022 pending on the file of the I Additional Family Court, Hubballi and take it on its board to be heard and disposed of along with M.C.No.228/2020.

ii. Considering the appropriate situation and the other sufficient reasons, the Principal Judge, Family Court, Hubballi may pass appropriate order in this regard. The order with regard to withdrawal or transfer may pass within two weeks from the date of receipt of certified copy of this order. With the above observations, the petition is disposed of.

Sd/-

JUDGE RH